



Sponsorship Agreement

Between,

The compagny Dassault Systèmes whose registered office is located at 10, Rue Marcel Dassault, Vélizy-Villacoublay · 78140 represented by Christian Haltiner.

(Hereinafter referred to as "the **Sponsor**")

And

The Aether Swiss Kite Association, registered at EPFL Station 9 MEB 0 1015 Lausanne, represented by Guilhem Destriau and Théodore Jacquet-Lagrèze.

(Hereinafter referred to as "the **Sponsored**")

(Hereinafter collectively referred to as "the **Parties**")

Preamble

Dassault Systèmes is a global leader in 3D design, engineering, and simulation software, headquartered in France. Renowned for its powerful 3DEXPERIENCE platform, the company enables businesses across industries such as aerospace, automotive, life sciences, and industrial equipment to support innovations. Dassault Systèmes empowers organizations to digitally model, simulate, and optimize their products and processes from concept to production. Committed to shaping the future of engineering and design, the company actively supports students through academic partnerships, collaborative projects, and hands-on learning opportunities.

Æther Swiss Kite is a MAKE-recognised EPFL student association, aiming to participate in the research and development of autonomous kite systems to decarbonise the shipping sector. As a student association, the work of the members is unpaid and the fruits of the research are not intended to generate any revenue, but are intended to be freely available in open source.

Considering the will of both parties to develop their activity in their respective fields, they wish to join forces for this purpose and to exploit by contract the image of Aether Swiss Kite.

Under these conditions, the parties agree as follows:

1. Purpose of the contract

The purpose of this Agreement is the support of the Sponsored's activities and student development ("the **Project**") by the Sponsor.

2. Contributions and Rights of the Parties

2.1 The Sponsor

To participate in the success of the Project and to highlight its contribution in its communication, the Sponsor commits to:

- Participate financially in the Project by paying the amount of 9000 € (excluding VAT). This amount will be paid within 30 calendar days after the receipt by the Sponsor of the invoice issued by the Sponsored.
- Provide to the Sponsored with the necessary software and hours of engineering support to further its project and the development of its students, for a total of 1000 €. This will aid in the education of students on the use of the sponsor's equipment.
- Provide to the Sponsored the elements of its visual identity (official logo, name to be used, specific communication rules, etc.) as soon as the present contract is signed and at any time during the duration of the present contract, if this visual identity should change.

Depending on the needs of the Sponsored and the Sponsor's business, additional participation may be discussed with the Sponsor on a case-by-case basis.

2.2 The Sponsored

To highlight the Sponsor's contribution to the Challenge, the Sponsored commits to:

- Make the Sponsor's name visible on its website in the "Æther Swiss Kite Sponsors" section.
- Upon request, provide the Sponsor with access to communication material (photos, videos, articles, etc.) presenting the Project to allow the Sponsor to highlight its support in its communication. Therefore, the Sponsored grants the right to the Sponsor to build its communication and to present itself as a "Aether Swiss Kite Sponsors". With this specific content, the Sponsored also grants the Sponsor the right to use the ASK association logos, as well as the identity and mission of the Project for its communication.
- Present the Sponsor in its communication in an Instagram story.
- Present the Sponsor in its communication in a collective Instagram and LinkedIn Post among other partners of the sponsored.
- Upon request, goes to the sponsor's offices to give an internal presentation of the Æther's project to its employees. Travel costs are at the sponsor's charge.
- Make the Sponsor's name visible on its prototypes in Large size.
- Make the Sponsor's name visible on its teamwear, in Large size.
- Present the Sponsor in its communication in an exclusive Instagram and LinkedIn Post among other partners of the sponsored.
- On request, once during the term of the contract, attend an event of the sponsor's choice to give a public presentation of the Æther project, displaying the project prototypes. Transport and travel expenses will be covered by the sponsor.
- Provide the Sponsor with a balance sheet of performance and results regarding the present contract and its requirements.

2.3 Communication

When the Sponsor uses the identity of the Sponsored and the Project in its communications, the Sponsored has the right to require modification or removal of the communication (e.g., posts, photos, videos, articles, etc.) if it compromises the Project. In the event of modification or suppression of the communication, the Sponsored must propose in good faith, an alternative acceptable to the Sponsor.

3. Extension

At any time, the scope of this Agreement may be extended to other areas/activities in a manner to be agreed between the Parties. Depending on the circumstances, this extension may be the subject of a separate agreement.

4. Confidentiality

CONFIDENTIAL

(1) The Parties undertake to keep confidential any technical or strategic information, including information that may be protected by intellectual property rights, or commercial information acquired during their activities in connection with this Agreement. If any information is to be disclosed to a third party, the Party wishing to disclose such information must first inform the other Party and obtain its free consent in this regard.

(2) This obligation of confidentiality shall continue to apply during and after the execution of this Agreement, respectively after its termination, for as long as there is a legitimate interest in its continuation.

(3) The confidentiality obligation defined above does not apply to information, which can be proven:

(i) It is already publicly known at the time of its disclosure to the recipient or will become publicly known thereafter without breach of this confidentiality undertaking.

(ii) It was already known to the recipient prior to its disclosure by the owner.

(iii) It is disclosed to the recipient by a third party entitled to have it disclosed.

(iv) It was developed by the recipient independently of the information received from the owner,

(v) It is disclosed in the course of judicial or administrative proceedings in which the disclosing Party has been duly heard and pursuant to an enforceable decision.

The contents of the Agreement and all relationships between the parties arising therefrom are strictly confidential.

(4) The Sponsor shall not, however, be entitled to invoke these confidentiality obligations to object to the implementation or exploitation of the technical information concerned in the context of the Project or by the Sponsored in the context of the activities for the benefit of the nautical industry.

5. Duty of loyalty

The parties are aware that the success of the sponsorship depends primarily on loyalty. Therefore, each party shall defend the interests of the other party and shall refrain from doing anything that could harm the interests of the latter.

6. Duration of the Agreement

6.1 Contractual duration

The present Agreement comes into force immediately upon signature by the parties and is valid for a period of one year (12 months), renewable for one year. At the end of the term, the contract may be renewed according to terms to be agreed upon by the parties.

6.2 Early termination

The parties are entitled to prematurely terminate this Agreement in the following cases:

- Either party fails to comply with any of the obligations described in this Agreement, despite a warning from the aggrieved party.
- Either party engages in improper and morally reprehensible conduct that may potentially damage the reputation of the other party.

7. Final provisions

Any modification must be made in writing and with the consent of both parties.

The rights and obligations arising from this Agreement may not be transferred to third parties. Companies belonging to the group of one of the Parties shall not be considered as third parties.

In the event of a dispute, the Parties shall seek an amicable solution. In case of failure, the ordinary courts of the Canton of Vaud shall have jurisdiction and Swiss law shall apply.

Place, date:

Dassault Systèmes

.....
Christian Haltiner

ASK Association

.....
Guilhem Destriau, President

.....
Théodore Jacquet-Lagrèze, Resp. Partnerships


